

Athens, 23-09-2024

Ref. No.: 2576

DECISION 32 / 2024

The Hellenic Data Protection Authority convened at its headquarters, Kifisias 1-3 Athens, on Tuesday, April 30, 2024, following the meetings of April 26, 2024, March 12, 2024, and December 5, 2023, in order to examine the case referred to below in the background of this decision. Present were the Chairman of the Authority, Konstantinos Menoudakos, and the regular members of the Authority Spyridon Vlachopoulos, Konstantinos Lamprinoudakis, as rapporteur, Christos Kalloniatis, Aikaterini Iliadou, and Grigorios Tsolias, as well as the alternate member Nikolaos Libos, as rapporteur in place of the regular member Charalambos Anthopoulos, who, although duly and timely summoned, did not attend. Present without voting rights were Eleni Marangou, Georgia Panagopoulou, Konstantinos Limniotis, and Anastasia Tritaki, auditors of the Authority, as assistant rapporteurs, and Irini Papageorgopoulou, an employee of the administrative affairs department, as secretary.

The Authority took into account the following:

With complaint No. G/EIS/6753/26-09-2023, A reported to the Authority that in the context of the issuance of the new type of identity cards, on August 25, 2023, he addressed a request to the Ministry of Citizen Protection regarding the provision of information and the overall legality of the processing for the issuance of the new type of identity card. Regarding the aforementioned request, as stated by the complainant, and despite the fact that on September 19, 2023, he sent a related reminder, he did not receive a response.

The Authority, taking into account the broader discussion that exists in the public sphere and occupies public opinion regarding the new type of identity cards for Greek citizens, proceeded, following the above complaint, to a self-initiated examination of the case and sent document No.

G/EXE/2544/11-10-2023, requesting the provision of opinions from the Ministry of Citizen Protection concerning the issues raised by the above complaint, and specifically regarding the receipt of the complainant's request and the existence of a relevant response.

With response document No. G/EIS/7563/25-10-2023 (Ref. No. Ministry / .. /) the Ministry of Citizen Protection (through the Director of State Security/Identity and Archives Department) presented the following to the Authority:

- a) during the period of sending the relevant request, there were numerous ongoing service actions in order to timely initiate the issuance of the new type of identity cards for Greek citizens, due to the country's related commitments towards its European and international obligations, for the delay in the implementation of which it had received a Warning Letter (Article 258 TFEU) for non-compliance with Regulation (EU) 2019/1157, while there was also a multitude of incoming requests, reports, etc., which concerned clarifications regarding the upcoming process of issuing the new type of identity cards and for which efforts were made by the relevant departments to satisfy them as much as possible, including numerous specific requests from citizens related to religious or similar issues, to which the Directorate had been called to respond, despite the fact that they fell outside its competencies,
- b) within the framework of the operation of the new identity issuance system for Greek citizens, with a view to proper planning to achieve the highest possible level of security for the personal and operational data managed and stored, a Risk Analysis Study had been conducted by the Information Technology Directorate of the Hellenic Police, in order to identify potential risks and vulnerabilities of the new system and to propose appropriate technical and organizational measures to address them, and
- c) since the new system includes biometric data, a study for the assessment of the impact on personal data has already been proposed, in order to ensure compliance with the GDPR, for which a working group will be formed under the auspices of the State Security Directorate, as the Lead Service/Data

Controller, in which officials from relevant Directorates of the Hellenic Police Headquarters will participate.

Following these, the Authority summoned the Ministry of Citizen Protection for a hearing with document No. G/EIS/2876/14-11-2023 on Tuesday, December 5, 2023, in the Plenary of the Authority, with discussion topics a) the provision of general information to data subjects and b) the conduct of an impact assessment regarding the processing of data in the context of the issuance of the new type of identity cards. In this session, which took place at the headquarters of the Authority, representatives from the Hellenic Police (EL.AS.) were present, including B, Police Director, Head of the Identity and Archives Department, G, Police Deputy Director, Head of the Identity Office/Identity and Archives Department, and D, Police Officer B, Data Protection Officer of EL.AS., in order to provide clarifications on issues raised by the Chairman and the Members of the Authority.

The aforementioned, after orally presenting their views, were given a deadline during this session to submit written memoranda to further support their claims.

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them. Following this, the Hellenic Police (ΕΛ.ΑΣ.) timely submitted the document with reference number Γ/ΕΙΣ/455/19-01-2024, along with the supplementary document with reference number Γ/ΕΙΣ/759/31-01-2024, which included a data protection impact assessment study.

With the above, the Hellenic Police presented the following to the Authority:

a) Regarding the provision of information to data subjects, the provisions mentioned in the aforementioned document with reference number Γ/ΕΙΣ/7563/25-10-2023 (reference number .../.../.... of the Ministry) apply. Furthermore, in order to ensure the best possible, complete, and understandable information for data subjects regarding the processing of personal data collected and stored during the issuance of the new type of identity cards for Greek citizens, the Hellenic Police has prepared a relevant informational text, which has been posted on its corresponding website and has been transmitted to all issuing authorities in the country, so that it can be displayed prominently in the issuing offices, with the aim of fully informing the subjects before submitting a relevant application for the issuance of an identity card,

b) The process for issuing the new type of identity cards for Greek citizens began on 25/9/2023, pursuant to the decision number 3021/19/84-μχ' dated 04-09-2023 by the Minister of Citizen Protection (Government Gazette Β' 5328),

c) The issuance of identity cards for Greek citizens is regulated by the provisions of Law Decree 127/1969 (Α' 29), as amended and in force, as well as by the Joint Ministerial Decision number 8200/0-297647 dated 10-04-2018 (Β' 1476), as amended and in force, which provides for the issuance of the new type of identity cards, while the provisions of Law 1599/1986 (Α' 75), as amended, and specifically Articles 1, 2, 3, 4, and 5, which also regulated the issuance of identity cards for Greek citizens, have been repealed. Specifically, Articles 1, 3, and 4, as amended, were repealed by the provisions of Article 144 of Law 5003/2022 (Α' 230), while Articles 2 and 5 were repealed by the provisions of Article 6 of Law 1988/1991 (Α' 189). Due to the fragmentation of legal provisions concerning the issuance of identity cards for Greek citizens across different legal texts, a relevant explanatory note has been circulated by the Hellenic Police, which pertains to the amendment of Law Decree 127/1969 "On the evidentiary value of identity cards" (Α' 29), as amended and in force, so that the relevant provisions are regulated by a single legal text,

d) With the decision number 1519/23/2347819 dated 21-11-2023 by the Head of the Staff/General Police Directorate, a working group was formed with the aim of preparing a study on the impact assessment of personal data concerning the new type of identity cards for Greek citizens. This impact assessment study describes in detail the process of issuing the new type of identity cards, namely the process of collecting data from the subjects, the method of storage.

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of this data, processes, and security technologies concerning both the manner of transmitting information from the issuing authorities to the document printing authority, as well as the characteristics of the document itself (including the digital storage medium embedded within it), the management of human resources, data protection measures, etc.,

e) the data of the data subjects currently provided for by explicit legislative provisions (European

regulations, laws, ministerial decisions, etc.) and which constitute data that ensures with certainty the exclusive connection of identity cards with their holders; however, within the framework of the principle of data minimization, the Hellenic Police (ΕΛ.ΑΣ.) will consider the possibility of reducing the data that is collected and required for the issuance of the identity card today, if and to the extent that the unique matching of holder – card can be ensured with certainty, suggesting, in the concurrent case, the possibility of amending the existing legislation,

f) regarding the storage of data collected during the issuance process of new identity cards, according to the provisions of Article 3 of Law Decree 127/1969, the issuing authorities are obliged to maintain a special identity record, which contains all the data recorded for the issuance of these cards as well as the submitted documents for their issuance, while according to the provisions of Article 10 of the Joint Ministerial Decision No. 8200/0-297647 dated 10-04-2018 (Β'1476), it is stipulated that, at the Directorate of State Security of the Headquarters of the Hellenic Police (ΕΛ.ΑΣ.), an electronic identity file is maintained with the issuance documents and the data contained in each identity card. The documents submitted for the issuance of the identity card are kept in original form by the issuing services of Article 1 for a period of one (1) year from the date of their submission. The data stored in the electronic application "Identity Cards of Greek Citizens," which is accessible via the information network and information systems of the Hellenic Police (Police on Line), are retained without deletion, in the context of fulfilling the purpose and responsibilities of the Hellenic Police (legal issuance of documents, identity verification, data verification, investigation of criminal acts, etc.). In the case of issuing an identity card to replace an old one, the physical file of the old card and its contents (issuance documents) are destroyed by the issuing authority. The old card is kept in the file prepared for the new identity card as documentation, except in cases of loss/theft. The documents of identity cards that have been revoked and have not been removed from their holders are not destroyed. The destruction of these occurs only after the removal – seizure of the identity cards from their holders, except in the case where the revocation occurs due to the identity card being obtained through fraud, in which case the aforementioned documents constitute evidentiary documents and consequently must, along with the formed case file, be submitted to the competent prosecutorial authority,

g) the fingerprints of applicants for a new identity card are used exclusively and solely for the purpose of registering them in the digital storage medium embedded in the identity card, during the personalization process of the card at the Directorate of Passports & Security Documents/A.E.A. Their collection is carried out through a special application, which operates on the information network of the Hellenic Police (Police on Line), an application that is used exclusively for this specific purpose and by authorized personnel. The fingerprints are deleted automatically after ninety (90) calendar days from the issuance of each identity card,

h) details related to the data recorded on the identity card of Greek citizens, as well as other technical characteristics thereof, are maintained in the public online registry of genuine identity documents and travel documents of the Council of the European Union (PRADO).

The Authority convened at its headquarters on Tuesday, March 12, 2024, in order to discuss the case under examination. During the discussion, further questions arose regarding the following issues: a) the type of processing that may be applied to the personal data stored in the electronic storage medium of the new identity card, namely the data: father's surname, mother's surname, municipality of registration, civil registry number, and place of issuance of the card, given that this data does not appear to constitute data for utilization by electronic services, which may be stored in the aforementioned electronic storage medium according to Article 3 paragraph 10 of Regulation (EU) 2019/1157, as well as the entities authorized to carry out the processing, in what manner and by what means, and for what purposes, b) the manner of satisfying the rights of data subjects (and, in particular, the right of access to the data stored in the electronic storage medium of the identity), and c) the manner of separating national data from biometric data, taking into account that, according to Article 3 paragraph 10 of Regulation (EU) 2019/1157, if a Member State stores data for electronic services such as e-government in identity cards, then such national data must be physically or logically separated from the biometric data referred to in paragraph 5 of the Regulation.

In order to clarify the above issues, the Authority sent the letter with reference number.

Authority G/EX/977/28-03-2024 document to the Hellenic Police, requesting supplementary clarifications. In response, with reference number Authority G/EIS/3370/11-04-2024 (reference number Hellenic Police .../.../...), the Hellenic Police stated, among other things, the following:

- a) According to the provisions of Law Decree 127/1969 (A' 29), Law 1599/1986 (A' 75), and the joint ministerial decision number 8200/0-297647 dated 10-04-2018 (B' 1476), among the identity elements included in both the old-type and the new identity cards of Greek citizens are the surname of the father and mother of the holder, the municipality of registration, the municipal registry number, and the place of issuance of the card. By virtue of the provisions of Article 3§3 of Law 1599/1986 (A' 75) (which has since been repealed by Article 144(b) of Law 5003/2022), the competent Minister was authorized to add elements of the holder to the card, but not to remove them. Consequently, in the design and implementation of the process for issuing the new cards, the aforementioned elements were also provided for in the joint ministerial decision number 8200/0-297647 dated 10-04-2018 (as amended and in force), as elements included in the new card. However, due to the fact that it was not possible: i) to remove them in the absence of a relevant authorizing provision, nor ii) to print them on the body of the card due to insufficient space on it, the aforementioned elements are incorporated into the electronic storage medium of the said document, and are also maintained in the electronic identity file of the Hellenic Police, as elements that are provided and collected during the issuance process of each card, while from the aforementioned elements, only the surname of the father and mother of the holder are included in the other data provided to the Interoperability Center of the Ministry of Digital Governance, which is responsible for interoperability and data exchange among Public Sector Entities, in accordance with the applicable legislation [see Law 4727/2020 (A' 184), Law 4623/2019 (A' 137), and reference number 118944 EX 2019 dated 01-11-2019 (B' 3990)],
- b) Regarding the right of access of data subjects to the data related to the issuance of identity cards for Greek citizens, the competent Services of the Hellenic Police may provide the requested data as stipulated by the provisions of the Code of Administrative Procedure (Law 2690/1999 (A' 45)), as amended and in force),
- c) Regarding the separation of biometric data from other data, it is noted that the electronic storage medium incorporated into the identity cards of Greek citizens currently issued does not store data related to the support or implementation of e-government services.

Finally, with the aforementioned document, the Hellenic Police stated that it intends to propose in the near future the drafting of a new bill regarding the new type of identity cards for Greek citizens and the process of issuing them, which will regulate in a unified manner issues that have arisen from the simultaneous validity of different legislations, both during the issuance of the old and the new identity cards.

The Authority, after examining the elements of the file and those arising from the hearing before it and the memoranda of the Ministry, having heard the presenters and the clarifications from the assistant presenters, who attended without voting rights, after thorough discussion,

CONSIDERED IN ACCORDANCE WITH THE LAW

- 1) From the provisions of Articles 51 and 55 of the General Regulation (EU) 2016/679 on the protection of natural persons with regard to the processing of personal data (hereinafter GDPR) and Article 9 of Law 4624/2019 (Government Gazette A' 137), it follows that the Authority has the competence to supervise the application of the provisions of the GDPR, Law 4624/2019, and other regulations concerning the protection of individuals from the processing of personal data.
- 2) According to Article 4, item 1) of the GDPR, "personal data" is defined as "any information relating to an identified or identifiable natural person ('data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier such as a name, an identification number, location data, an online identifier, or to one or more factors specific to the physical, physiological, genetic, psychological, economic, cultural, or social identity of that natural person," while "biometric data" is defined by Article 4, item 14 of the GDPR as "personal data resulting from specific technical processing related to the physical, biological, or behavioral characteristics of a natural person, which allow or confirm the unequivocal identification of that natural person, such as

facial images or fingerprint data." Biometric methods are understood as techniques for certifying the identity of natural persons through the analysis of their stable characteristics. Biometric methods can be classified into two categories: i. techniques based on the analysis of physical or genetic characteristics (such as fingerprints, palm geometry, iris analysis, facial features, DNA) and ii. techniques based on the analysis of behavior (such as signature, voice, typing style).

3) According to the provisions of Article 4, item 7 of the GDPR, the data controller determines the purposes and means of processing the data. A key criterion for determining the data controller is the functional criterion. In public administration, hierarchy constitutes a method of internal organization aimed at ensuring the uninterrupted continuity of the

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of its work and the coherence of the rules applied among the units and services that fall under the superior body of the entity. Therefore, the functional criterion is primarily linked to the responsibilities conferred by law to a specific authority, service, or legal entity under public law. Regarding the determination of the data controller for the specific case, Article 11 paragraph 2 of Regulation (EU) 2019/1157 of the European Parliament and of the Council of June 20, 2019, on the enhancement of the security of identity cards issued to Union citizens and residence documents issued to Union citizens and their family members exercising the right to free movement (hereinafter Regulation (EU) 2019/1157) states that "For the purposes of this regulation, the authorities responsible for the issuance of identity cards and residence documents are considered the data controllers within the meaning of Article 4 paragraph 7 of Regulation (EU) 2016/679 and are responsible for the processing of personal data." According to Article 1 of Joint Ministerial Decision 8200/0-297647/2018 (Government Gazette B'1476/27-04-2018) "Issuance of a new type of Identity Card for Greek citizens," "Responsible authorities for issuance. Identity cards for Greek citizens are issued by the Security Department of the place of residence of the interested party, for the region of the Attica Security Directorate or Thessaloniki, and by the Sub-Directorate or the Security Department of the place of residence of the interested party for the rest of the Country. Where such services do not exist, identity cards are issued by the Police Station, which exercises security responsibilities in the place of residence of the interested party, and in the event that this does not exist either, identity cards are issued by the Police Sub-Directorate located in the said area." Therefore, the Ministry of Citizen Protection, under which the Hellenic Police operates, is the data controller for the processing of personal data that takes place during the issuance of identity cards for Greek citizens.

4)

For the data contained in the new type of identity card for Greek citizens, the following provisions apply:

a) Article 3 of Regulation (EU) 2019/1157 "1. Identity cards issued by Member States are produced in ID-1 format and contain a machine-readable zone (MRZ). These identity cards are based on the specifications and minimum security standards set out in ICAO document 9303 and comply with the requirements specified in points (c), (d), (f), and (g) of the Annex to Regulation (EC) No. 1030/2002, as amended by Regulation (EU) 2017/1954. 2. The data elements included in the identity cards meet the specifications set out in Part 5 of ICAO document 9303. By way of derogation

1 Ch. Akrivopoulou, Ch. Anthopoulos, Introduction to Administrative Law, Greek Academic Electronic Publications, 2015, Chapter 3, p. 77.

2 <https://eur-lex.europa.eu/legal-content/EL/TXT/?uri=CELEX%3A32019R1157>

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From the first paragraph, the document number may be entered in zone I, and the specification of a person's gender is optional.

3. The document bears the title ("Identity Card") or another established national designation in the official language or languages of the issuing Member State, and the words "Identity Card" in at least one other official language of the Union's institutions.

4. The identity card contains, on the front side, the two-digit country code of the Member State issuing the card, printed negatively within a blue rectangle and surrounded by twelve yellow stars.

5. Identity cards include a high-security storage medium that contains biometric data consisting of an

image of the cardholder's face and two fingerprints in digital formats. For the collection of biometric identifiers, Member States apply the technical specifications established by the Commission's implementing decision C(2018)7767.

6. The storage medium has sufficient capacity and capability to ensure the integrity, authenticity, and confidentiality of the data. The stored data is accessible without contact and secured as provided in the implementing decision C(2018)7767. Member States exchange the information required to verify the authenticity of the storage medium and to access the biometric data referred to in paragraph 5 and to verify it.

7. Children under 12 years of age may be exempted from the obligation to provide fingerprints. Children under 6 years of age are exempt from the obligation to provide fingerprints. Persons who are unable to provide fingerprints for physical reasons are exempt from the obligation to provide fingerprints.

8. When necessary and proportionate to the intended objective, Member States may include national use data and remarks, as required by national law. This does not diminish the effectiveness of the minimum security standards and the cross-border compatibility of identity cards.

9. If Member States incorporate a dual interface or a separate storage medium in the identity card, the additional storage medium complies with the relevant ISO standards and does not affect the storage medium referred to in paragraph 5.

10. If Member States store data for electronic services such as e-government and electronic business activities on the identity cards, such national data must be physically or logically separated from the biometric data referred to in paragraph 5.

11. If Member States add additional national security features to the identity cards, the...

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The cross-border compatibility of these identity cards and the effectiveness of the minimum security standards must not be diminished.³

b) Recital 21 of Regulation (EU) 2019/1157 states: "This regulation does not provide a legal basis for the creation or maintenance of databases at the national level for the storage of biometric data in the Member States, an issue that falls under national law which must comply with Union law regarding data protection. Furthermore, this regulation does not provide a legal basis for the creation or maintenance of a central database at the Union level."

c) Recital 43 of Regulation (EU) 2019/1157 states: "It is necessary to clarify in this regulation the basis for the collection and storage of data in the storage medium of identity cards and residence documents. In accordance with Union or national law and respecting the principles of necessity and proportionality, Member States should be able to store other data in a storage medium for electronic services or other purposes related to the identity card or residence document. The processing of such other data, including their collection and the purposes for which they may be used, should be permitted by Union or national law. All national data for these purposes should be physically or logically separated from the biometric data referred to in this regulation, and their processing should comply with Regulation (EU) 2016/679."

d) Article 2 of Law Decree 127/1969 (Government Gazette A' 29) "Probative Force of Police Identities," according to which "Identity cards include the following elements: 1) Photograph of the holder. 2) Fingerprint. 3) Surname. 4) Name. 5) Father's name. 6) Mother's name. 7) Spouse's name and, in the case of a married woman, her father's name. 8) Exact date of birth. 9) Place of birth. 10) Height (for those over 25 years old). 11) Shape of face. 12) Eye color. 13) Blood type (to be filled in optionally). 14) The status of the holder of the card as a retiree of the Public Sector or another insurance fund. 15) Place of permanent or temporary residence. 16) Residential address. 17) Profession. 18) Nationality. 19) Municipality or Community in which the holder of the card is registered, as well as the registration number of this registration. 20) Religion⁴, and 21) Any other element.

³ See also the Opinion of the European Data Protection Supervisor "EDPS Opinion 7/2018 on the Proposal for a Regulation strengthening the security of identity cards of Union citizens and other documents," available at: https://edps.europa.eu/data-protection/our-work/publications/opinions/security-identity-cards-union-citizens_en

⁴ See relevant Decision of the Hellenic Data Protection Authority 510/17/15-05-2000, available at:

https://www.dpa.gr/sites/default/files/2020-10/2000_510-17.doc, Council of State Plenary 2281/2001, available at: <http://www.greeklaws.com/pubs/uploads/1006.pdf>
ECtHR, Sofianopoulos and others v. Greece - decision on admissibility (app.no. 1988/02 1997/02 1977/02), available at: [https://hudoc.echr.coe.int/eng#{%22fulltext%22:\[%22sofianopoulos%22\],%22itemid%22:\[%22001-23654%22\]}](https://hudoc.echr.coe.int/eng#{%22fulltext%22:[%22sofianopoulos%22],%22itemid%22:[%22001-23654%22]})

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to be determined by a decision of the Minister of Public Order, published in the Government Gazette." e) Article 3 paragraph 1 of Law 1599/1986 (Government Gazette A' 75), which states that: "1. The identity cards contain the following details of the holder: a.- Photograph b.- Surname c.- Name d.- Father's surname and name e.- Mother's surname and name f.- Gender g.- Spouse's surname and name h.- Date of birth (day, month, year) i.- Place of birth j.- Nationality k.- Religion l.- Municipal registry number m.- Citizen n.- Electoral registration o.- Residential address p.- Holder's signature q.- Blood type r.- D.I.O.S. The details of the above cases b and c are also written in Latin characters (ELOT 743)." The following paragraph was added to the above paragraph 1 by Article 23 of Law 4647/2019 (Government Gazette A' 204): "The identity card incorporates an electronic storage medium, which contains the holder's photograph in digital form, the data of the machine-readable zone of the card, two (2) fingerprints of the index fingers and both hands of the holder, and an approved electronic signature certificate, in accordance with Article 3 of Regulation (EU) 910/2014." Furthermore, paragraph 2 of the same Article 3 provides that: "2. The data contained in the identity card, according to the previous paragraph, shall be recorded mandatorily, except for the data of cases g (blood type) and h (D.I.O.S.) Donor of Tissues and Organs. These data shall be recorded upon request of the interested party, who in the case of the D.I.O.S. element must have full legal capacity." st) Article 3 of the Joint Ministerial Decision 8200/0-297647/2018 (Government Gazette B' 1476/27-04-2018) "Issuance of a new type of Identity Card for Greek citizens," as amended by Article 1 of Ministerial Decision 8200/0-181621 (Government Gazette B' 1671/14.05.2019), and subsequently by Article 1 of Ministerial Decision 8200/0-109568 (Government Gazette B' 824/17.02.2023), according to which:

"1. The identity card is of ID-1 format, dimensions 85.6 x 54 mm ± 0.75mm, thickness up to 1 mm, in accordance with the recommendations of ICAO DOC9303 edition 7 and includes:

- the Visual Inspection Zone (VIZ),
- the Machine Readable Zone (MRZ) and
- the integrated non-contact electronic storage medium, as specified in document 9303 of the International Civil Aviation Organization (ICAO) for machine-readable travel documents.

2. The substrate of the identity card is made of synthetic plastic, polycarbonate material.

3. The details of the identity card are printed on it, as specified in Annex A of Article 14 of this document and specifically:

3.1. Zone 1

- Coat of Arms of the Hellenic Republic
- Name of the Country (ΕΛΛΗΝΙΚΗ ΔΗΜΟΚΡΑΤΙΑ / HELLENIC REPUBLIC)
- Type of document (ΔΕΛΤΙΟ ΤΑΥΤΟΘΗΤΑΣ / IDENTITY CARD)
- The ICAO symbol for the presence of an RFID chip
- Identity number (ΑΡΙΘΜΟΣ ΤΑΥΤΟΘΗΤΑΣ / CARD NUMBER)

3.2. Zone 2

- Surname / Σurname
- Name / Name
- Sex / Sex (Άρρεν / Θήλυ - Male / Female)
- Date of birth / Ημερομηνία γέννησης
- Nationality / Nationality

3.3. Zone 3

- Date of Issue / Ημερομηνία έκδοσης
- Date of expiry / Ημερομηνία λήξης
- Issuing Authority / Αρχή έκδοσης
- Card Access Number (CAN - Card Access Number)."

3.4. Zone 4

- Signature of bearer / Signature of bearer

3.5. Zone 5

- Photograph of holder in a frame of dimensions 37 x 30 mm

3.6. Zone 6

- Father's name / Father's name

- Mother's name / Mother's name

- Place of birth / Place of birth

- Blood type / Blood type (optional)

- Height / Height (after the completion of the 24th year of age)."

3.7. Zone 7

In the Machine Readable Zone of the identity card, data is printed with machine-readable OCR-B characters, in accordance with document 9303 of ICAO.

4. The integrated electronic storage medium stores the holder's photograph in digital form, the data of the Machine Readable Zone of the card (MRZ), and two (2) fingerprints of the index fingers and both hands of the applicant. In the case of permanent or temporary inability to take the fingerprint of the index finger, the fingerprint of the thumb, middle, or ring finger of the same hand is taken in order, while in the case of a one-handed person, a fingerprint of a second finger from the existing hand is taken, in the same order as above. The

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Permanent or temporary inability to take fingerprints, beyond cases of obvious amputation, is evidenced by a medical certificate, which bears the signature of a physician of the relevant specialty corresponding to the condition being certified. Additionally, the following information is stored in the aforementioned electronic medium: the surname of the father, surname of the mother, the municipality of registration, the registration number, and the place of issuance of the identity card, while the data required for Electronic Governance Services may also be stored if it is decided to include them in the said medium.

5)

Regarding the issue of storing biometric data on identity cards, in the Judgment RL v. Landeshauptstadt Wiesbaden, Case C-61/225, the Court of the EU ruled that Article 3(5) of Regulation (EU) 2019/1157 does not constitute an unjustified restriction of Articles 7 and 8 of the Charter of Fundamental Rights of the European Union, in conjunction with Article 52(1) thereof.

6)

With decisions 2388-91/2019, the Fourth Section of the seven-member composition of the Council of State ruled on annulment applications against the aforementioned Joint Ministerial Decision 8200/0-297647/2018 (Government Gazette B'1476/27-04-2018). Specifically, in these decisions, the reasons challenging the appropriateness of selecting the specific type of police identity card and the reasons alleging violations of legislative and supralegal provisions regarding the protection of personal data, personality, personal freedom, free movement within the country, freedom of religious conscience, and, consequently, Article 3 of the Constitution, as well as exceeding legislative authorization, were deemed inadmissible. In the aforementioned decisions of the Council of State, it was accepted, among other things, that the data "stored in the non-contact electronic storage medium of the new type of identity cards is intended exclusively for reading by passport control devices and requires (for this reading) a distance of 3-4 centimeters between the body of the card and the said device (...) the embedded non-contact electronic storage medium is protected by an access control mechanism, which denies access to its content if the control system of the reading device cannot prove that it has authorization to access the said embedded non-contact electronic medium, and this proof is provided through a cryptographic protocol, which demonstrates that the control system of the reading machine knows the information derived from the page containing the details of the holder of the machine-readable travel document; the control system of the reading machine must receive this information, which is provided through optical contact from the...

5 Judgment RL v. Landeshauptstadt Wiesbaden, March 21, 2024, C-61/22, available at: <https://eur-lex.europa.eu/legal-content/EN/TXT/?uri=CELEX:62022CJ0061>

electronic travel document (from the machine-readable zone), before being able to read the electronic contactless medium (...). Furthermore, with the aforementioned decision 2388/2019 of the Court, the relevant application for annulment was partially accepted, and the said joint ministerial decision was annulled only to the extent that it provided for the storage (also) of "the data required for electronic governance services" in the embedded contactless electronic storage medium that includes the new type of identity card. In this regard, the Court ruled that electronic governance services have a very broad content, and the aforementioned data are not critical for proving the identity of Greek citizens and cannot be considered to be related to the additional data of the holder, according to one of the empowering provisions for the issuance of the said joint ministerial decision (Article 3 of Law 1599/1986); thus, the storage of this data does not find a basis in the relevant empowering provisions. Following this decision of the Council of State, Article 3 of Law 1599/1986 was amended by the aforementioned Article 23 of Law 4647/2019 (Government Gazette A' 2047).

7)

According to Article 5 of the GDPR, points a), c), and f) "1. Personal data: a) are processed lawfully and fairly in a transparent manner in relation to the data subject ('lawfulness, fairness, and transparency'), (...) c) are adequate, relevant, and limited to what is necessary for the purposes for which they are processed ('data minimization'), (...) f) are processed in a manner that ensures appropriate security of personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction, or damage, using appropriate technical or organizational measures ('integrity and confidentiality')", while according to paragraph 2 of the same article "The data controller is responsible and is able to demonstrate compliance with paragraph 1 ('accountability')". Furthermore, Article 6 paragraph 1 of the GDPR provides, among other things, that processing is lawful only if at least one of the following conditions applies (legal bases for processing): "a) the data subject has given consent to the processing of their personal data for one or more specific purposes, (...) c) the processing is necessary for compliance with a legal obligation to which the data controller is subject, (...) e) the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller (...)".

6 <http://www.adjustice.gr/webcenter/portal/ste/pageste/epikairoτητα/apofaseis/>

7 Specifically, according to Article 23 of Law 4647/2019, "At the end of paragraph 1 of Article 3 of Law 1599/1986 (A' 75), the following sentence is added: 'An electronic storage medium is embedded in the identity card, which contains the holder's photograph in digital form, the data of the machine-readable zone of the card, two (2) fingerprints of the index fingers of both hands of the holder, and an approved electronic signature certificate, according to Article 3 of Regulation (EU) 910/2014.'"

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8) Furthermore, to ensure the principle of transparency of processing, Article 12(1) of the GDPR states that: "The controller shall take appropriate measures to provide the data subject with all information referred to in Articles 13 and 14 and any communication in the context of Articles 15 to 22 and Article 34 regarding processing in a concise, transparent, intelligible, and easily accessible form, using clear and plain language, particularly when addressing information specifically to children. The information shall be provided in writing or by other means, including, where appropriate, electronically. When requested by the data subject, the information may be provided orally, provided that the identity of the data subject is proven by other means." Furthermore, paragraph 2 of the same article states that "the controller shall facilitate the exercise of the rights of data subjects as provided for in Articles 15 to 22." Moreover, the provisions of Articles 13 and 14 of the GDPR regulate the obligation to inform that must be provided by the controller if personal data is collected from the data subject (Article 13 GDPR) and if personal data has not been collected from the data subject (Article 14 GDPR).

9) Additionally, regarding the obligation to inform on the part of the controller, Recital 40 of Regulation (EU) 2019/1157 states: "Regulation (EU) 2016/679 of the European Parliament and of the Council (9) applies to the processing of personal data in the context of the application of this regulation. It is necessary to further clarify the guarantees that apply to the processing of personal data, and in particular sensitive data such as biometric data. Data subjects should be informed that their documents contain a storage medium that holds their biometric data and is accessible without contact,

as well as to be aware of all instances in which the data contained in their identity cards and residence documents are used. In any case, data subjects should have access to the personal data that is subject to processing in their identity cards and residence documents and should have the right to rectify them by issuing a new document, in case such data is incorrect or incomplete (...).

10) Regarding the obligations of the controller, Article 24(1) of the GDPR states: "1. Taking into account the nature, scope, context, and purposes of the processing, as well as the risks of varying likelihood and severity for the rights and freedoms of natural persons, the controller shall implement appropriate technical and organizational measures to ensure and to be able to demonstrate that the processing is performed in accordance with this regulation. Such measures

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are reviewed and updated when deemed necessary. Article 25 paragraphs 1-2 of the GDPR states that: "1. Taking into account the latest developments, the cost of implementation, and the nature, scope, context, and purposes of the processing, as well as the risks of varying likelihood and severity for the rights and freedoms of natural persons arising from the processing, the data controller effectively implements, both at the time of determining the means of processing and at the time of processing, appropriate technical and organizational measures, such as pseudonymization, designed to implement data protection principles, such as data minimization, and to integrate the necessary safeguards into the processing in such a way that the requirements of this regulation are met and the rights of data subjects are protected. 2. The data controller implements appropriate technical and organizational measures to ensure that, by default, only personal data which are necessary for each specific purpose of the processing are processed. This obligation applies to the scope of personal data collected, the degree of their processing, the period of storage, and their accessibility. In particular, these measures ensure that, by default, personal data are not made accessible without the intervention of the data subject to an indefinite number of natural persons."

11) Furthermore, according to Article 35 paragraph 1 of the GDPR, "When a type of processing, in particular using new technologies and taking into account the nature, scope, context, and purposes of the processing, is likely to result in a high risk to the rights and freedoms of natural persons, the data controller shall carry out, prior to the processing, an assessment of the impact of the intended processing operations on the protection of personal data. An assessment may consider a set of similar processing operations which present similar high risks.", while according to paragraph 3 of the same article: "The impact assessment referred to in paragraph 1 regarding the protection of personal data is required, in particular, in the case of: a) systematic and extensive evaluation of personal aspects relating to natural persons, which is based on automated processing, including profiling, and which produces legal effects concerning the natural person or similarly significantly affects the natural person, b) large-scale processing of special categories of data referred to in Article 9 paragraph 1 or personal data relating to criminal convictions and offenses referred to in Article 10 or (...)" and paragraph 3 of the same article: "The supervisory authority shall draw up and publish a list of the types of processing operations that are subject to the requirement for conducting an impact assessment regarding the protection of personal data pursuant to paragraph 1. (...)" The Authority, in accordance with paragraph

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4 of Article 35 GDPR has established and published a list of the types of processing operations that are subject to the requirement for conducting a data protection impact assessment under paragraph 1 (Decision 65/2018). In Decision 65/2018, it is stated that conducting a DPIA is deemed mandatory when at least one of the criteria of the 1st or 2nd category of processing operations grouping is met. In the 2nd category, item 2.2.3 refers to "data concerning national identification number or other general-purpose identification element or changes in the conditions and terms of processing and use of such data and related personal data," a category that includes the processing under discussion.

12)

Regarding the provision of information to data subjects, as required by the principle of transparency, in relation to the issuance of a new identity card, with reference number G/EIΣ/455/19-01-2024, the Hellenic Police (ΕΛ.ΑΣ.) argued before the Authority that relevant information has been posted on its website. Upon reviewing the relevant section on the website:

<https://www.astynomia.gr/odigos-tou-politi/dikaiologitika/ekdosi-deltiou-taftotitas/enimerosi-gia-tin-epexergasia-dedomenon-prosopikou-charaktira-apo-ti-diefthynsi-kratikis-asfaleias-archigeiou-ellinikis-astynomias/> 8, text providing information regarding issues of this specific personal data processing is located, which is available to citizens. However, this information was not posted until the end of February 2024 on the relevant website (even though the issuance of the new type of identity cards had already begun in September 2023); moreover, the posted information contains incorrect references, such as, in particular, an incorrect legal basis regarding biometric data, as it mentions "manifestly freely given consent," which cannot constitute a valid legal basis for the processing in question, given that the obligation to issue an identity card arises from a provision of mandatory law in the exercise of public authority (Article 6(1)(e) GDPR), while consent, to constitute a valid legal basis, must be freely given (Article 4(11) GDPR) and should not be considered freely given if the data subject does not have a genuine or free choice or is unable to refuse or withdraw consent without detriment (see Recital 42 GDPR). Furthermore, the said information also refers to Article 46 of Law 4624/2019 regarding the processing of special categories of data; however, the provisions of this article concern processing carried out by the Hellenic Police exclusively for the purposes provided in Article 43 of the said law⁹ and do not apply to the processing in question. Moreover, the relevant informative document was not submitted before the Authority.

8 Access Date 12/3/2024, 30/4/2024.

9 That is, for the purposes of preventing, investigating, detecting, or prosecuting criminal offenses or executing criminal sanctions, including protection against threats to public safety and their deterrence.

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The text, as stated in the document number G/EIΣ/455/19-01-2024, has been "transmitted to all issuing authorities of the country, in order to be posted in a visible location at the issuing offices, with the aim of fully informing the subjects before submitting a relevant application for the issuance of an identity card."

13)

Regarding the information contained in the new identity card, it appears that the embedded electronic storage medium (chip) stores, in addition to the photograph and fingerprints, the father's surname, mother's surname, the municipality of registration, the registry number, and the place of issuance of the card. These details are not included in the mandatory information according to Article 3, paragraph 5 of Regulation (EU) 2019/1157, and their inclusion in the new identity card, as indicated by the claims of the data controller, arises from the application of national legal provisions, which include elements that have been deemed illegal and/or unconstitutional (see Council of State Decision 2281/2001), without having been expressly repealed or amended by a newer law. Furthermore, Article 3, paragraph 10 of Regulation (EU) 2019/1157 indicates that national data stored on the embedded storage medium must pertain to electronic services, whereas in this case, the additional data pertains to simple identification details for which, according to the claims of the data controller, there was insufficient space on the front of the identity card. In any case, the data controller did not substantiate, either in their written memorandum or in the context of the Data Protection Impact Assessment (DPIA), the purposes of processing these details, resulting in a lack of necessity for their inclusion. Specifically, no substantiated responses were provided by the data controller to the question of how the aforementioned details are accessible and processable by the electronic medium, by what means, for what purposes, and by which entities.

14)

According to the provisions of Article 35, paragraph 1 of the GDPR, in accordance with the principle of protection by design and by default, the requirement to conduct a data protection impact assessment must take place at least before the processing begins. In the case at hand, the data controller did not conduct, as required, an assessment of the impacts of the planned personal data processing operations for "national purposes" before the issuance of the new identity cards commenced.

15)

Based on the aforementioned considerations, the data controller violated Articles 13 and 14 of the GDPR due to the absence of information for a prolonged period, as well as due to incorrect information in the citizen information text, which was posted late on the data controller's website. Moreover, the

data controller did not substantiate, either through the DPIA, compliance with the principle of data minimization regarding specific details contained in the electronic storage medium, as analyzed in the above considerations, in violation of the obligations under Article 24 of the GDPR. Furthermore, the data controller violated Article 35, paragraph 1 of the GDPR, as they did not conduct, as required, the necessary impact assessment, only doing so after the processing had commenced and only following the relevant communication from the Authority, while the impact assessment does not appear to have identified all the risks, as evidenced by the aforementioned identified violations. Based on the above, the Authority deems it appropriate to exercise its corrective powers under Articles 58, paragraph 2 of the GDPR and 39, paragraph 1 of Law 4624/2019 concerning the identified violations and that, based on the circumstances identified, an effective, proportionate, and deterrent administrative monetary fine should be imposed in accordance with Article 58, paragraph 2, point (h) of the GDPR, both to restore compliance and to deter illegal behavior.

Furthermore, the Authority took into account the criteria for determining the fine, which are defined in Article 39, paragraph 2 of Law 4624/2019 applicable to the present case, the Guidelines for the application and determination of administrative fines for the purposes of Regulation 2016/679 issued on 03-10-2017 by the Article 29 Working Party (WP 253), as well as the Guidelines 04/2022 of the European Data Protection Board for calculating administrative fines within the framework of the General Regulation, as well as the factual data of the examined case, based on which the severity of the violation is deemed significant, particularly evaluating:

- that the nature of the violations pertains to the accountability obligations of the data controller as well as the rights of the subjects under the GDPR,
- that the processing concerns a core activity of the data controller (issuance of identity cards),
- the large number of affected subjects, which in fact includes all Greek citizens who are required to carry an identity card,
- that the purpose of the processing is legitimate and that the processing does not appear to result in immediate serious consequences for the data subjects,
- the fact that the data controller took, following the intervention of the Authority, specific measures in the right direction, such as conducting the impact assessment and informing the citizens, although these have not been fully and correctly implemented, as analyzed in the above considerations.

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FOR THESE REASONS

THE AUTHORITY

A. Imposes, pursuant to Article 58 paragraph 2 subparagraph (θ) of the GDPR, a monetary fine of fifty thousand (50,000) euros on the Ministry of Citizen Protection as the data controller, for the violation of Articles 13 and 14 of the GDPR.

B. Imposes, pursuant to Article 58 paragraph 2 subparagraph (θ) of the GDPR, a monetary fine of one hundred thousand (100,000) euros on the Ministry of Citizen Protection as the data controller, for the violation of Article 35 paragraph 1 of the GDPR.

C. Orders, pursuant to Article 58 paragraph 2 subparagraph (δ) of the GDPR, the Ministry of Citizen Protection as the data controller, to take the following actions:

- To document, while simultaneously updating the corresponding Data Protection Impact Assessment (DPIA), the need to include in the electronic medium data beyond what is required by European legislation.
- Based on the results of the aforementioned documentation, to take the necessary actions to adjust the processing related to the issuance of identities, within six (6) months from the notification of this decision, informing the Authority accordingly, so that henceforth the identities issued will comply with the provisions contained in this Decision.

Although there is no doubt regarding the validity of the identities, the issuance of which is based on the currently applicable legal framework, as described above, the Authority emphasizes the obligation to update and codify the legal framework concerning the data in the new type of identity cards for Greek citizens and the process of issuing them, in order to uniformly regulate issues that have arisen, on the one hand, from the repeal of relevant provisions and, on the other hand, from the simultaneous

application of different legislations, both during the issuance of the old and the new identity cards, taking into account the various specific issues analyzed in this Decision.

The President

The Secretary

Konstantinos Menoudakos

Irini Papageorgopoulou